

SENATE No. 132

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing certain minors to consent to supportive services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/4/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/11/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>2/20/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/27/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/24/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/4/2025</i>

SENATE No. 132

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 132) of Adam Gomez, Jason M. Lewis, Michael D. Brady, James B. Eldridge and other members of the Senate for legislation to allow certain minors to consent to shelter and receive supportive services. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 94 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing certain minors to consent to supportive services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6A of the General Laws, is hereby amended by inserting after Section 16XX the
2 following new section:-

3 Section 16XX: (a) In this chapter the following terms, unless a contrary meaning is
4 required by the context or is specifically prescribed, shall have the following meanings: “Service
5 Provider” is a public or private nonprofit organization that provides supportive services to a
6 mature minor experiencing or at risk of experiencing homelessness in need of supportive
7 services

8 “Supportive Services” shall mean interventions, services, or resources necessary to assist
9 a mature minor experiencing or at risk of experiencing homelessness in acquiring or maintaining:

(i) stable housing; (ii) permanent connections, including ongoing attachments to families, communities, schools, and other positive social networks; (iii) financial stability; (iv) education, employment or income, including high performance in completion of education and training activities, especially for younger youth, and starting and maintaining adequate and stable employment, particularly for older youth; or (v) social and emotional wellbeing, including the development of key competencies, attitudes, and behaviors that equip a young person to succeed across multiple domains of daily life, including school, work, relationships, and community.

“Mature minor experiencing or at risk of experiencing homelessness” or “mature minor” shall be a minor who (1) is 15 years of age or older; (2) is not in the physical custody of a parent or legal guardian; (3) lacks a fixed, regular, and adequate nighttime residence as defined in section 16W, chapter 6A; or (3) whose status or circumstances indicate a significant danger of experiencing homelessness in the near future. The minor shall also be able to understand the circumstances and implications of the situation in which they are involved and is able to participate in the decision making process without excessive anxiety or fear.

(b) A mature minor experiencing or at risk of experiencing homelessness in need of supportive services may consent to such services if the service provider reasonably believes that: (i) the mature minor understands the significant benefits, responsibilities, risks, and limits of the shelter and service and can communicate an informed consent; (ii) the mature minor understands the requirements and rules of the shelter and services; and (iii) the shelter and services are necessary to ensure the mature minor’s safety and wellbeing.

(c) A mature minor experiencing or at risk of experiencing homelessness in need of supportive services who is a parent may consent to supportive services and for their child.

(d) Any provider receiving funding from the Executive Office of Health and Human Services' Homeless Youth Services Division may provide services to a mature minor after they obtain informed and written consent from the mature minor. (e) The informed written consent from the mature minor in need of services shall state the their: (i) age; (ii) guardianship status, if known; and (iii) living situation.

(f) A service provider may not provide supportive services or shelter to a minor if the service provider has knowledge that the mature minor: (i) knowingly provided false information in the written consent required under subsection (c)(1); or (ii) does not meet the definition of an mature minor in need of supportive services under subsection (a) and (b) of this section.

(g) Any provider who renders supportive services to a mature minor in need of supportive services in compliance with this section shall be immune from any civil or criminal liability, unless such liability arises from the provider's gross negligence or willful or wanton acts or omissions.

(h) The Office of Children, Youth, and Families shall adopt regulations to carry out this section.